Office of the City Manager

CONSENT CALENDAR
May 14, 2024

To: Honorable Mayor and Members of the City Council

From: Dee Williams-Ridley, City Manager

Submitted by: Scott Ferris, Director, Parks Recreation & Waterfront

Subject: Contract: COWI North America, Inc. for Engineering and Design of the Berkeley Water Transportation Pier Ferry Project

RECOMMENDATION

Adopt a Resolution authorizing the City Manager to execute a contract and any amendments with COWI North America, Inc (COWI) in an amount not to exceed $6,500,000 which includes $250,000 of contingency to provide engineering and design services for the Berkeley Water Transportation Pier Ferry Project (Project) for the period June 1, 2024 through June 1, 2027.

FISCAL IMPACTS OF RECOMMENDATION

The cost of this contract is covered by a combination of Water Emergency Transportation Authority (WETA) funds and Alameda County Transportation Commission (ACTC) and California Coastal Conservancy (CCC) grants. Funds for the Project are available in the 2024 budget as follows:

- $1,700,000 in 606-52-545-000-0000-000-479-720003- PRWWF24002-606-COAST;
- $4,000,000 in 307-52-545-000-0000-000-461-720003- PRWWF24002-307; and
- $800,000 in funding from WETA is anticipated to be included in the first AAO of FY25.

CURRENT SITUATION AND ITS EFFECTS

On December 7, 2021, City staff presented the preferred concept from the Ferry Facility at Berkeley Municipal Pier Feasibility Study[1] (Feasibility Study), which includes landside and on-water improvements to provide a dual-purpose pier allowing both recreation and ferry access. The Feasibility Study was finalized and posted to the Project website in June, 2023[2].

The City has been awarded a California Coastal Conservancy grant of $2.96M and an Alameda County Transportation Commission (ACTC) of $5.139M to fund the

[1] December 7, 2021 Work Session
[2] Feasibility Study, Ferry Facility at Berkeley Municipal Pier, June 2023

engineering, detailed design and environmental studies for the Project. WETA has allocated funding in the amount of $3,000,000 for the engineering, design and environmental phase (Phase 2) of the Project in its 2023/24 Capital Budget. The City is in the process of amended its existing WETA MOU to reflect the Phase 2 scope and budget allocation.

On December 15, 2023 the City issued a request for qualifications for design services for the Berkeley Water Transportation Pier Ferry Project (Spec No. 24-11626-C). The City received three proposals and conducted interviews of all three firms. After evaluation of written proposals, reference checks and interviews, the selection panel identified COWI as the consultant best-suited to meet the City's needs for this Project.

This contract will provide engineering studies, design services, and permitting support to develop bid-ready design documents for the Berkeley Water Transportation Pier-Ferry Project.

BACKGROUND

In July of 2015, the Berkeley Municipal Pier was closed to the public indefinitely due to structural safety issues. On June 21, 2017, the City contracted with GHD, Inc. to perform a structural engineering assessment to identify feasible options and costs for fixing the Pier (contract No. 10632, Resolution No. 67,856). The draft study identified twelve options ranging in cost from $16 million to $51 million. A second component of the study looked at the feasibility of small-scale ferry service at the potentially renovated pier. (Small-scale ferry service is currently offered by two independent providers at K-dock at the main basin at the Marina).

In February of 2016, the Water Emergency Transportation Authority (WETA) updated its Strategic Plan, which identified a network of sixteen ideal locations for expanded ferry service throughout the Bay Area region, including Berkeley, to help provide alternative transportation for disasters and commuter needs.

WETA

In 1999, the California State Legislature established the Water Transit Authority (WTA) (which is WETA's predecessor agency), to consolidate existing ferry services operated by the cities of Valley, Alameda and Oakland into a comprehensive water transit system; and to expand water transit on the San Francisco Bay. In 2007, the agency name was changed to Water Emergency Transportation Authority (WETA) and it responsibilities expanded to include coordination of the water transit response to a regional emergency.

WETA's overall mission is to plan for and operate passenger-only ferry services on the San Francisco Bay for commuter and disaster response purposes. The Berkeley location has been identified in WETA's System Expansion & Strategic Plan (2016) as one of the higher priority Near-Term projects, along with the Seaplane Lagoon in

Alameda, Mission Bay in San Francisco, and Redwood City.

PREFERRED PROJECT
The Feasibility Study identified a preferred Project that consists of landslide and waterside improvements summarized below. All dimensions and concepts here are preliminary, and subject to change based on the detailed engineering and environmental studies that will occur in Phase 2. The planning-level construction cost estimate for the preferred Project is approximately $70M (not including electric ferry vessels or cost escalation, see Feasibility Study Appendix E).

- A new, 22-foot-wide pier (same width as the existing Berkeley Municipal Pier) to accommodate both ferry foot traffic, recreational activities, and emergency and maintenance vehicles. The pier extends from the shoreline at Seawall Drive westward to a new breakwater (approximately 580 feet long).
- A new breakwater creating a safe harbor from the predominantly southwesterly winds and waves for ferry boarding on the north side of the new pier (approximately 400 feet long). The breakwater would provide surface decking to allow public access for recreational activities.
- An extension of the new pier westward into the Bay beyond the breakwater for recreational use (approximately 500 feet long).
- A ferry facility including ferry berthing floats, float piles, ADA gangways, and security gates.
- Renovation of the parking lot located at 199 Seawall Drive, which would include new pavement surfacing, new striping, and new stormwater bioswales to treat stormwater.
- Improvement of an area along the southwestern side of University Avenue would provide for public buses, shuttles, and a drop-off zone for rideshare and family vehicles.
- Renovation of pedestrian pathways and safety lighting.
- Shifting the Seawall Drive vista parking zone from the west side to the east side of the road.
- A new water access point at the small peninsula located at the southwest corner of Seawall Drive.
- A new restroom and fish cleaning area.

ENVIRONMENTAL SUSTAINABILITY AND CLIMATE IMPACTS
The transportation system in the Bay Area has become severely impacted by the growing economy and population boom, causing severe traffic congestion and overcrowding on public transit systems. Traffic congestion keeps more vehicles on roads, and overcrowding on public transit systems can push commuters back into cars, both of which result in more greenhouse gas emissions.

The City's Climate Action Plan identifies public transit as a more sustainable form of

transportation (Chapter 3), and sets a goal to expand under-used modes of transportation, such as ferry service at the Berkeley Marina to connect to San Francisco and other locations. In spring, 2023, WETA completed the Blueprint for Zero Emission Vessel Transition. The Berkeley pier-ferry will be designed to support zero-emission ferry service.

As a water-based transportation service, WETA will be directly impacted by Sea-level Rise. As agencies throughout the Bay Area explore adaptation strategies and other mitigations, WETA will monitor forecasts and trends to ensure that its plans for expansion and operations will remain an effective public transit option for the foreseeable future.

This contract includes significant coordination between the design consultant (COWI) and the to-be-determined environmental consultant to ensure that Project environmental impacts are avoided and/or mitigated to the maximum extent feasible.

RATIONALE FOR RECOMMENDATION

After reviewing three proposals and conducting interviews and reference checks, the selection panel identified COWI as the best-suited for the City's needs. Staff therefore recommends Council approval of a contract with COWI for engineering and design services for the Berkeley Water Transportation Pier-Ferry Project.

ALTERNATIVE ACTIONS CONSIDERED

The City does not have the expertise required to complete the tasks covered by this contract. Therefore no alternative actions were considered.

CONTACT PERSON

Scott Ferris, Director, Parks Recreation & Waterfront, 981-6700
Christina Erickson, Deputy Director, PRW, 981-6712
Liza McNulty, PRW Capital Improvement Program Manager, 542-4131

Attachments:
1: Resolution

RESOLUTION NO. ##,###-N.S.

CONTRACT: COWI NORTH AMERICA, INC. FOR ENGINEERING AND DESIGN OF THE BERKELEY WATER TRANSPORTATION PIER FERRY PROJECT

WHEREAS, the City and Water Transportation Authority executed a Memorandum of Understanding effective July 1, 2019 for the Planning Phase of the Berkeley Pier-Ferry Project (Project) which included a feasibility study and public engagement; and

WHEREAS, the Planning Phase is complete and a preferred concept has been identified; and

WHEREAS, the second phase (Phase 2) of work includes detailed technical analyses, design, environmental studies, public engagement and permitting for the preferred Project concept; and

WHEREAS, WETA has allocated $3,000,000 of Regional Measure 3 funds for the Phase 2 of the Project in its adopted 2023/24 Capital Budget; and

WHEREAS, the City has been awarded a California Coastal Conservancy grant of $2.96M and an Alameda County Transportation Commission (ACTC) of $5.139M to fund the engineering, detailed design and environmental studies for the Project; and

WHEREAS, on December 15, 2024 the City issued a Request for Qualifications for engineering and design services for the Berkeley Water Transportation Pier Ferry Project (Spec No. 24-11626-C) and after reviewing three proposals and conducting interviews and reference checks the selection panel identified COWI North America, Inc. as the consultant best-suited for the City's needs; and

WHEREAS, the cost of this contract is covered by a combination of Alameda County Transportation Commission funds (ACTC) ($4,000,000 in 307-52-545-000-0000-000-461-720003- PRWWF24002-307), State Coastal Conservancy (SCC) funds ($1,700,000 in 606-52-545-000-0000-000-479-720003- PRWWF24002-606-COAST, and Water Emergency Transportation Authority (WETA) funds ($800,000 in funding from WETA is anticipated to be included in the first AAO of FY25).

NOW THEREFORE, BE IT RESOLVED by the Council of the City of Berkeley that the City Manager is hereby authorized to execute a contract and any amendments with COWI North America Inc. in an amount not to exceed $6,500,000 which includes $250,000 of contingency for the Berkeley Water Transportation Pier Ferry Project for the period June 1, 2024 through June 1, 2027. A record signature copy of said agreements and any amendments to be on file in the Office of the City Clerk.